

## Radhika Rai v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench (Court No. 21) · 28 March 2023 · WRIT - C No. 10207 of 2023 · **Petition disposed after the theft-dues recovery was withdrawn, with liberty to pass a fresh order under the Supply Code after hearing.**

### HEADNOTE

Where the Electricity Department withdraws a recovery citation for alleged theft dues and undertakes a fresh hearing, the writ is disposed of without a decision on liability, with liberty to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

### FACTUAL SUMMARY

Radhika Rai challenged, in a writ before the Allahabad High Court, a recovery citation dated 26 August 2022 issued by respondent no. 3 for electricity dues in a case of alleged theft. The State of Uttar Pradesh and three others were respondents. At the hearing, counsel for the Electricity Department stated on instructions that the impugned recovery had been withdrawn and that the petitioner would be given a fresh opportunity of hearing before any further order was passed.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::procedure-prescribed

Fresh order after withdrawal of a theft-dues recovery citation

#### HOLDING

On the Electricity Department's statement that the recovery citation dated 26.08.2022 had been withdrawn and that the petitioner would be heard afresh, the writ was disposed of with liberty to the Department to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

**FLAG** The order names the U.P. Electricity Supply Code, 2005 but states no clause number; none has been supplied.

### PRINCIPLE TAGS

**fresh-order-under-supply-code-after-withdrawal** Once the licensee withdraws a theft-dues recovery citation and offers a fresh hearing, the writ is disposed without deciding the dues, leaving the licensee to pass any fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE PETITIONER WAS LIABLE FOR THE ALLEGED THEFT OF ELECTRICITY, AND IN WHAT AMOUNT

The recovery citation was withdrawn. The Department was left at liberty to pass a fresh order after hearing. ¶ 1